

SENATE BILL 2225

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 37,
Chapter 1, relative to child abuse investigations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-1-607(a)(1)(A)(2), is amended by deleting the subdivision and substituting instead:

(2) Each team must be composed of one (1) person from the department, one (1) representative from the office of the district attorney general, one (1) juvenile court officer or investigator from a court of competent jurisdiction, and one (1) properly trained law enforcement officer with countywide jurisdiction from the county where the child resides or where the alleged offense occurred. The team may also include a representative from one (1) of the mental health disciplines and a representative trained in child abuse from one (1) of the medical disciplines. For cases involving an allegation that a child is a victim of a human trafficking offense, the team shall include a representative from one (1) non-governmental agency specialized in combatting the commercial sexual exploitation of minors. It is in the best interest of the child that, whenever possible, an initial investigation shall not be commenced unless all required disciplines are represented. An initial investigation may, however, be commenced if at least two (2) of the required team members are present at the initial investigation. In those geographical areas in which a child advocacy center meets the requirements of § 9-4-213(a) or (b), child advocacy center directors, or their designees, must be members of the teams under this part and part 4 of this chapter for the purposes of provision of services and functions established by § 9-4-213 or delegated pursuant to that section. In such event, child advocacy center directors, or their designees, may access and

generate all necessary information, which shall retain its confidential status, consistent with § 37-1-612.

SECTION 2. Tennessee Code Annotated, Section 37-1-607(a)(3), is amended by adding the following sentence at the end of the subdivision:

Each year, all team members shall complete fifteen (15) hours of training related to severe child abuse and child sexual abuse to be provided by the department.

SECTION 3. Tennessee Code Annotated, Section 37-1-406(i), is amended by deleting the subsection and substituting instead:

(i)

(1) Except for investigations concerning a child fatality, the department or team in cases of child sexual abuse or severe child abuse or the department in all other cases shall determine whether the reported abuse was indicated or unfounded and report its findings to the department's abuse registry no later than ninety (90) days after receiving the initial report.

(2) For investigations concerning a child fatality, the department or team shall determine whether the reported abuse was indicated or unfounded and report its findings to the department's abuse registry no later than one hundred eighty (180) days after receiving the initial report. If all necessary investigative tasks to determine if the reported abuse was indicated or unfounded cannot be completed within one hundred eighty (180) days after receiving the initial report, then the commissioner, or the commissioner's designee, may authorize one (1) extension of the investigation for good cause, for up to an additional one hundred eighty (180) days. The authorization shall document the good cause for the extension and a plan for completing the investigation.

(3) Each member of the team shall be provided with a copy of the report in any case investigated by the team. In any case investigated solely by the department, the department shall make a complete written investigation report, including its recommendation, to the juvenile court. The district attorney general shall also be provided a copy of any report in all cases where the investigation determines that the report was indicated. Further proceedings shall be conducted pursuant to part 1 of this chapter, as appropriate.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.